
Sam Alito's Latest Reversal at the Supreme Court Is an Absolute Embarrassment

Published by

Estimated reading time

6 min

Added on

2026-03-18

Address

<https://slate.com/news-and-politics/2026/03/sam-alito-supreme-court-embarrassment.html>

Sam Alito's Latest Reversal at the Supreme Court Is an Absolute Embarrassment

[Sign up for Executive Dysfunction](#), a weekly newsletter that surfaces under-the-radar stories about what Trump is doing to the law—and how the law is pushing back.

Last month, when the Supreme Court [agreed](#) to grant a petition from two oil companies, Suncor and Exxon, in a long-running [dispute](#) over whether the companies can be held liable under state law by Boulder, Colorado, for climate damages ensuing from their corporate misconduct, the most notable sentence was the one that was missing: “Justice Alito took no part in the consideration or decision of this petition.”

Three years ago, when the Supreme Court denied a petition from these same oil companies to take up this same case, Justice Samuel Alito [recused](#) himself from participation. The reason, though unspecified, was not hard to guess. Alito [owns](#) individual stock in several oil, gas, and mining companies including ConocoPhillips and Phillips 66. Though neither company is directly named in Boulder’s lawsuit, they are named in some of the dozens of parallel lawsuits across the country being brought by city, state, and tribal governments against oil and gas companies. Indeed, the last time the companies petitioned the Supreme Court to take up the Boulder case, they [hoped](#) to use it as a vehicle to get around Alito’s need to recuse in the other cases. Nevertheless he recused from all the connected cases, and the petitions were [dismissed](#).

These lawsuits broadly claim that the fossil fuel companies violated state laws when they failed to admit the known harms of their products and actively deceived the public about their risks. If the local and state governments prevail, they could receive billions of dollars to go toward the rising costs of recovery from climate-fueled disasters. In Boulder, that includes fires like the 2021 Marshall fire that wiped out over [1,000 homes](#).

For eight years, Boulder’s case against Suncor and Exxon has survived the oil companies’ attempts to have the case dismissed, claiming that federal law should preempt the state law claims. Last year, the Colorado Supreme Court [held](#) that the case should be allowed to proceed to discovery and trial in state court.

Fearing the possibility of “potentially enormous judgments” should Boulder succeed, Suncor and Exxon again [petitioned](#) the Supreme Court to review the lower court decision in Boulder’s favor. This time, the court obliged. The companies hope that a favorable decision from the Supreme Court in this case will shut down the parallel lawsuits too, [arguing](#) that Boulder’s claims are “representative of the claims being brought in parallel suits across the country, meaning that resolution of the question presented here will have immediate impact elsewhere.”

It is at this high-stakes juncture that Alito, well known for his fossil fuel [holdings and track record](#) of deciding in the industry’s favor, decided not to recuse from the decision to [grant](#) the oil companies’ petition. Alito offered no justification for his reversal. As recently as January 2025, Alito had [recused](#) himself from considering a petition from the oil companies in Honolulu’s parallel climate liability case which [asked](#) the same question as Suncor and Exxon’s [petition](#).

According to his most recent [financial disclosure](#), Alito has between \$60,007 and \$245,000 [invested](#) in individual oil, gas, and coal companies. He also has up to \$100,000 invested in a [high-dividend yield fund](#) in which Exxon is the third-largest holding. (The Supreme Court’s nonbinding [code of](#)

[ethics](#) claims that investment in diversified funds doesn't constitute a "financial interest" unless the justice "participates in the management of the fund.")

Alito's vested interest in the oil and gas industry's future should be reason enough to recuse from participating in a case where the petitioners directly [allege](#) that an adverse holding against them would threaten the industry's future. But his financial holdings are not even the only conflict of interest that should compel his recusal. As it turns out, one of Alito's billionaire friends, Paul Singer, has a substantial stake in the outcome of this case, too.

Paul Singer, founder and president of the hedge fund Elliott Investment Management, is heavily invested in Suncor, one of the two petitioners. Between 2022 and 2024, Elliott Investment Management doubled its share in Suncor from \$1.6 billion to over \$3 billion after successfully pushing for new leadership at the oil company, Yahoo [reported](#). According to investment research platform Fintel, Elliott Investment Management currently [owns](#) 52.67 million shares in Suncor worth over \$2.3 billion. Singer's firm is also invested in Phillips 66, [owning](#) 19.25 million shares worth over \$2.48 billion.

Alito and Singer's relationship came under public scrutiny in 2023, when ProPublica [reported](#) that Alito had failed to disclose that he had flown for free on Singer's private jet on his way to a luxury fishing trip in Alaska organized by "[court whisperer](#)" Leonard Leo. If Alito had paid for the flight himself, it would have [cost](#) more than \$100,000 each way.

The story evidently got under Alito's skin. He published an [op-ed](#) in the Wall Street Journal arguing that ProPublica misled its readers: He wasn't very close to Paul Singer (who called Alito a "model Supreme Court justice" when he [introduced](#) the justice to a crowd of Manhattan Institute donors in 2010); the seat on Singer's private jet would otherwise have been empty, and he was actually saving taxpayer money by taking an undisclosed free trip on a billionaire's private jet instead of flying commercial with a security detail; he hadn't known that Singer was involved in certain cases before the court, but even if he had, he wouldn't have been obliged to recuse anyway.

"It was and is my judgment that these facts would not cause a reasonable and unbiased person to doubt my ability to decide the matters in question impartially," Alito [wrote](#).

Today, [record numbers](#) of Americans of both parties doubt the Supreme Court justices' ability to make impartial decisions. An NBC News poll this month [found](#) that 38 percent of registered voters had "very little" or "no" confidence in the court, greatly outstripping the 22 percent who had a "great deal" or "quite a bit" of confidence in the court.

In 2023, the [cascade of revelations](#) about the right-wing billionaire donors courting favor with Supreme Court justices including Alito and Clarence Thomas prompted public outcry and a flurry of congressional investigations. But the pressures of the moment failed to yield a binding code of ethics for the Supreme Court. While federal employees are broadly [prohibited](#) from accepting gifts worth over \$20 from anyone with interests that might be affected by government business, Supreme Court justices, who enjoy lifetime appointments, can apparently argue their way out of disclosing free trips from billionaires via op-eds in the Wall Street Journal.

Far from taking action to remedy this crisis in public confidence, the Supreme Court has fashioned itself *less* transparent and accountable in the wake of the [devastating](#) 2022 *Dobbs* decision and subsequent ethics scandals. The high court is [increasingly](#) using the shadow docket to make monumental decisions outside of official proceedings, including to protect Trump's executive power

grabs. And employees and clerks are now required to sign nondisclosure agreements that threaten legal action if confidential information is leaked, the New York Times[reported](#) in February.

Justice Alito could and should belatedly recuse from participating in this case. He did so as recently as January of this year, taking a step back from *Chevron USA Inc. v. Plaquemines Parish, Louisiana* when it became clear that ConocoPhillips, whose stock he owns, [remained a party](#) to the case at the district court level. A belated recusal would be better than no recusal. But the deserved mistrust in the highest court to hold itself to the highest ethical standard will not diminish unless and until there is some actual lever for publicly elected officials to enforce that standard.

Produced by wallabag with tcpdf

Please open [an issue](#) if you have trouble with the display of this E-Book on your device.